

COMPENDIUM OF INDIAN ENVIRONMENTAL & CORPORATE LAWS

Statutory Provisions, Mandatory Texts & Deciphering Judicial Precedents against Greenwashing

Source Thesis: Corporate Responsibility Regarding the Concern of Greenwashing, Policy and Legal Initiatives: A Critical Study

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Jurisdiction: India (Strictly Indian Statutory & Constitutional Regimes)

PILLAR 1: CONSTITUTIONAL BEDROCK & JUDICIAL FOUNDATIONS

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Constitution of India <i>Supreme Law of India (Fundamental Rights)</i>	1950	Article 21 Right to Life & Personal Liberty (Climate & Pollution-Free Environment)	"No person shall be deprived of his life or personal liberty except according to procedure established by law." Mandate: Expansively interpreted to include the fundamental right to a wholesome, clean environment and distinct protection from adverse climate change impacts.	<u>M.K. Ranjitsinh & Ors. v. Union of India</u> 2024 SCC OnLine SC 570 SUPREME COURT OF INDIA (3-JUDGE BENCH / CJI D.Y. CHANDRACHUD) Right to Climate Immunity: Recognized a distinct fundamental right under Articles 21 and 14 to be free from the adverse effects of climate change. Establishes the constitutional bedrock for corporate emissions accountability and truthful climate disclosure. <u>M.C. Mehta v. Union of India (Oleum Gas Leak)</u> (1987) 1 SCC 395 SUPREME COURT OF INDIA (CONSTITUTION BENCH) Absolute Liability Doctrine: Enterprises engaged in hazardous activities owe an absolute and non-delegable duty to society; liability cannot be escaped by showing absence of negligence. <u>M.C. Mehta v. Kamal Nath (Span Motels)</u> (1997) 1 SCC 388 / (2000) 6 SCC 213 SUPREME COURT OF INDIA Public Trust Doctrine & Exemplary Damages: Natural resources are held in trust by the State for the public. Commercial polluters face exemplary damages for deceptive or damaging exploitation. <u>Subhash Kumar v. State of Bihar</u> (1991) 1 SCC 598 SUPREME COURT OF INDIA Right to Pollution-Free Water & Air: Right to life under Art. 21 includes enjoyment of pollution-free air and water. Citizens may invoke Art. 32 to enforce environmental baselines.
Constitution of India <i>Directive Principles of State Policy</i>	1950	Article 48A Protection & Improvement of Environment & Safeguarding Forests/Wildlife	"The State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country." Mandate: Imposes an affirmative constitutional obligation upon the State to implement environmental protection policies and curb ecological deception.	<u>Vellore Citizens' Welfare Forum v. UOI</u> (1996) 5 SCC 647 SUPREME COURT OF INDIA Integration of International Norms: Read Art. 48A, Art. 51A(g), and Art. 21 together to incorporate Sustainable Development, Precautionary Principle, and Polluter Pays Principle as domestic law. <u>Indian Council for Enviro-Legal Action v. UOI</u> (1996) 3 SCC 212 SUPREME COURT OF INDIA State Duty to Enforce: Held that State authorities are constitutionally bound under Art. 48A to take stringent measures to recover environmental restoration costs from polluting industries.

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Constitution of India <i>Fundamental Duties of Citizens</i>	1950	Article 51A(g). Duty to Protect & Improve the Natural Environment	"It shall be the duty of every citizen of India to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures." Mandate: Creates a constitutional norm of ecological stewardship applicable to citizens and collectively to commercial corporate legal entities.	<u>Virender Gaur v. State of Haryana</u> (1995) 2 SCC 577 SUPREME COURT OF INDIA Ecological Duty of Juridical Persons: Environmental protection is a collective constitutional duty. Corporate bodies cannot engage in deceptive commercial practices that compromise environmental preservation. <u>Rural Litigation & Entitlement Kendra v. State of U.P.</u> AIR 1985 SC 652 SUPREME COURT OF INDIA Primacy of Ecological Balance: Preserving ecological balance supersedes narrow commercial or revenue interests; businesses have a duty not to misrepresent ecological impacts.
Constitution of India <i>Fundamental Rights (Speech & Information)</i>	1950	Article 19(1)(a). Commercial Speech Boundaries & Consumer Right to Truthful Information	"All citizens shall have the right to freedom of speech and expression." Mandate: Guarantees commercial speech protection only for truthful advertising; deceptive, misleading green claims enjoy zero constitutional protection.	<u>Tata Press Ltd. v. MTNL</u> (1995) 5 SCC 139 SUPREME COURT OF INDIA (3-JUDGE BENCH) No Protection for Misleading Ads: Commercial speech is protected under Art. 19(1)(a) to ensure public receives economic information, but false, deceptive, or misleading advertisements are completely unprotected and subject to state prohibition. <u>Indian Express Newspapers v. UOI</u> (1985) 1 SCC 641 SUPREME COURT OF INDIA Consumer Right to Know: Freedom of expression includes the public's right to receive unmanipulated, truthful information on products and environmental realities.

PILLAR 2: CONSUMER PROTECTION & ANTI-GREENWASHING GUIDELINES REGIME

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Consumer Protection Act, 2019 <i>Act No. 35 of 2019</i>	2019	Section 2(28). Statutory Definition of 'Misleading Advertisement'	"...means an advertisement, which— (i) falsely describes such product or service; or (ii) gives a false guarantee to, or is likely to mislead consumers as to nature, substance, quantity or quality; or (iii) conveys representation constituting unfair trade practice; or (iv) deliberately conceals important information." Mandate: Captures greenwashing that relies on false descriptions, unscientific eco-guarantees, or deliberate concealment of life-cycle environmental degradation.	<u>Indian Medical Association & Anr. v. UOI</u> 2024 SCC OnLine SC 665 SUPREME COURT OF INDIA Self-Declaration Certificate (SDC) Mandate: Held that misleading claims severely distort consumer autonomy. Mandated advertisers/agencies to submit self-declarations affirming claim veracity under CPA Section 2(28) prior to publishing. <u>Havells India Ltd. v. Amritanshu Khaitan</u> 2015 SCC OnLine Del 8115 DELHI HIGH COURT Puffery vs. Actionable Misrepresentation: Generic praise is permissible puffery, but specific, measurable claims (e.g. energy savings, eco-efficiency) must be factual, accurate, and scientifically substantiated.

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Consumer Protection Act, 2019 <i>Act No. 35 of 2019</i>	2019	Section 2(47). Statutory Definition of 'Unfair Trade Practice' (UTP)	"...means a trade practice which, for promoting sale, use or supply of goods/services, adopts unfair method or deceptive practice including: falsely representing goods are of particular standard, quality, grade, composition; or giving false warranty/guarantee of performance not based on adequate test." Mandate: Outlaws unsubstantiated green claims, fake eco-certifications, and fabricated environmental efficacy claims without empirical testing.	<u>CCPA v. Deceptive E-Commerce & FMCG Brands</u> CCPA Enforcement Orders (2023–2025) CENTRAL CONSUMER PROTECTION AUTHORITY Empirical Test Prerequisite: Making absolute assertions such as '100% Eco-Friendly' or 'Zero Carbon' without documented laboratory test reports constitutes deceptive UTP under Section 2(47)(i).
Consumer Protection Act, 2019 <i>Act No. 35 of 2019</i>	2019	Sections 10, 18 & 20 CCPA Powers, Regulatory Inquiries & Nationwide Product Recalls	Section 10 establishes CCPA. Section 18 empowers CCPA to prevent consumer rights violations, UTPs, and false ads. Section 20 empowers CCPA to pass orders for recall of goods, withdrawal of services, reimbursement of price, and cessation of false practices. Mandate: Empowers CCPA to act as a proactive watchdog with suo motu powers to investigate corporate greenwashing and order nationwide product recalls.	<u>CCPA Suo Motu Class Enforcement Actions</u> Annual Report / CCPA Orders (2022–2024) CCPA / CONSUMER FORUMS Class Remediation Authority: CCPA possesses administrative jurisdiction to issue blanket discontinuance orders against deceptive marketing campaigns across electronic, print, and social media.
Consumer Protection Act, 2019 <i>Act No. 35 of 2019</i>	2019	Section 21 Directions & Monetary Penalties for Misleading Ads (₹10L / ₹50L + Endorser Bans)	"Central Authority may issue directions to discontinue or modify false/misleading advertisement... may impose on manufacturer or endorser penalty up to ₹10 Lakh (₹50 Lakh for subsequent contravention)... and prohibit endorser from making endorsements for 1 to 3 years." Mandate: Direct financial and reputational deterrence against corporations, advertising agencies, and celebrity/influencer endorsers for green deception.	<u>Indian Medical Association v. UOI</u> 2024 SCC OnLine SC 665 SUPREME COURT OF INDIA Endorser & Corporate Liability: Affirmed that under Section 21, endorsers have a statutory duty of verification and face personal endorsement prohibitions for promoting deceptive corporate claims.
Consumer Protection Act, 2019 <i>Act No. 35 of 2019</i>	2019	Section 89 Criminal Sanctions for Misleading Ads (Imprisonment up to 2–5 Years)	"Any manufacturer or service provider who causes a false or misleading advertisement to be made prejudicial to consumer interest shall be punished with imprisonment up to 2 years and fine up to ₹10 Lakh; and for subsequent offence, imprisonment up to 5 years and fine up to ₹50 Lakh." Mandate: Provides ultimate criminal penal deterrence for deliberate and egregious corporate greenwashing schemes causing public deception.	<u>State Consumer Enforcement Jurisprudence</u> Criminal Complaints under CPA 2019 MAGISTRATE COURTS / CONSUMER REGULATORS Mens Rea in Commercial Deception: Establishes criminal culpability where manufacturers knowingly publish fabricated sustainability claims to induce consumer purchases.
CCPA Greenwashing Guidelines, 2024 <i>Notified Oct 15, 2024 (under CPA 2019)</i>	2024	Guidelines 2(1), (f), 4 & 5 Definition of Greenwashing & Mandatory Point-of-Sale Transparency	Defines 'Greenwashing' as concealing/omitting relevant information or making vague/false/unsubstantiated claims. Mandates that claims must be clear, accurate, and substantiated with accessible disclosures via QR codes or web links. Mandate: Codifies India's first express legal definition of greenwashing and establishes digital transparency mandates at the point of sale.	<u>CCPA Guidelines Implementation Framework</u> F. No. CCPA/28/2023–CCPA (2024) CENTRAL CONSUMER PROTECTION AUTHORITY Ban on Hidden Trade-Offs: Selective reporting of green features while concealing major environmental harms is defined as statutory greenwashing; requires complete life-cycle transparency.

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CCPA Greenwashing Guidelines, 2024 <i>Notified Oct 15, 2024 (under CPA 2019)</i>	2024	Guidelines 6 & 7 Mandatory Substantiation & Prohibition on Generic Vague Green Terms	Guideline 6 mandates claims be supported by verifiable empirical data, accredited third-party certification, or Life Cycle Assessments (LCA). Guideline 7 prohibits generic terms ('clean', 'green', 'eco-friendly', 'carbon neutral', 'sustainable') without precise qualifications. Mandate: Eliminates cosmetic eco-branding; shifts the burden of proof to advertisers to possess empirical scientific proof prior to making any environmental claim.	<u>Thesis Doctrinal Analysis on Guideline 7</u> Thesis Chapter 5.2.1 / ASCI Precedents REGULATORY / SELF-REGULATORY RULINGS De-genericization of Green Claims: Absolute adjectives are prohibited; companies must state specific metrics (e.g. 'manufactured using 40% recycled solar energy') rather than vague assertions.
CCPA Greenwashing Guidelines, 2024 <i>Notified Oct 15, 2024 (under CPA 2019)</i>	2024	Guidelines 8 & 9 Regulation of Future Environmental Targets (Futurewashing) & Carbon Offsets	Guideline 8 requires future targets (e.g. 'Net Zero by 2040') to have science-based transition plans, interim milestones, and allocated capital. Guideline 9 requires clear distinction between internal emission reductions vs. purchased offsets, with registry details. Mandate: Prevents 'futurewashing' (empty aspirational net-zero pledges) and outlaws reliance on unverified, low-integrity carbon credits.	<u>UN HLEG 'Integrity Matters' & Indian Alignment</u> Thesis Chapter 4 & 5 Comparative Analysis INTERNATIONAL / CCPA NORMS Anti-Futurewashing Standard: Forward-looking net-zero claims without concrete capital expenditure plans and verifiable interim targets constitute actionable deception.
CCPA Misleading Ads Guidelines, 2022 <i>Notified June 9, 2022 (under CPA 2019)</i>	2022	Guidelines 3, 4, 8 & 12 Standards for Valid Ads, Bait Ads & Endorser Due Diligence Duties	Prescribes conditions for non-misleading advertisements, regulates free and bait claims, and imposes mandatory due diligence obligations on celebrities/influencers endorsing products. Mandate: Requires endorsers to reflect genuine opinions and verify that environmental assertions made in promotional material are substantiated.	<u>Indian Medical Association v. UOI</u> 2024 SCC OnLine SC 665 SUPREME COURT OF INDIA Mandatory Endorser Diligence: Endorsers cannot escape liability for deceptive claims unless they produce documentary evidence of independent verification.
ASCI Code & Green Claims Guidelines <i>Recognized under Cable TV Networks Rules</i>	2024	Chapter I & Guidelines 1–5 Self-Regulatory Standards for Honest Environmental & Carbon Neutral Claims	Requires claims to be supported by independent, reliable evidence covering entire life-cycle; prohibits unqualified claims ('carbon neutral', '100% eco-friendly'); requires transparent carbon offset disclosures. Mandate: Provides fast-track self-regulatory adjudication for deceptive green claims, recognized by statutory authorities and courts.	<u>ASCI Consumer Complaints Council Rulings</u> ASCI Decisions (2024) ADVERTISING STANDARDS COUNCIL OF INDIA Life-Cycle Integrity: Upheld complaints against FMCG and paint brands claiming 'organic/green' status where raw material extraction caused toxic pollution.

PILLAR 3: CORPORATE GOVERNANCE & BOARD ACCOUNTABILITY REGIME

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 166(2) Director's Statutory Fiduciary Duty for 'Protection of Environment'	"A director of a company shall act in good faith in order to promote the objects of the company for the benefit of its members as a whole, and in the best interests of the company, its employees, the shareholders, the community and for the protection of environment." Mandate: Codifies a direct, mandatory, and freestanding board-level fiduciary duty to protect the environment alongside shareholder and employee interests.	<u>Tata Consultancy Services Ltd. v. Cyrus Investments</u> (2021) 9 SCC 449 (¶ 19.30) SUPREME COURT OF INDIA (3-JUDGE BENCH) Freestanding Environmental Mandate: Confirmed that the duty for 'protection of environment' in Section 166(2) is a distinct, independent limb of director duties, establishing India's enlightened stakeholder corporate governance model. <u>Miheer H. Mafatlal v. Mafatlal Industries Ltd.</u> (1997) 1 SCC 579 SUPREME COURT OF INDIA Limits of Business Judgment Rule: While courts respect commercial discretion, the business judgment rule does not protect bad faith, reckless environmental misstatements, or fraudulent board decisions.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 166(3) & 166(7) Duty of Care, Skill, Diligence & Statutory Penal Sanctions	Section 166(3) mandates reasonable care, skill, diligence, and independent judgment. Section 166(7) prescribes fine between ₹1,00,000 and ₹5,00,000 for contravention. Mandate: Holds individual directors personally liable for signing off on deceptive greenwashing claims or failing to exercise oversight on ESG reports.	<u>Thesis Doctrinal Analysis on Penalty Arbitrage</u> Thesis Chapter 5.4.3 ACADEMIC / POLICY CRITIQUE Penalty Arbitrage Lacuna: The ₹5 lakh ceiling under Section 166(7) is commercially negligible for large corporations, creating an economic incentive for greenwashing that necessitates turnover-based penalties.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Sections 241 & 242 Application to NCLT for Oppression, Mismanagement & Affairs Prejudicial to Public Interest	Section 241(1) permits members to apply to NCLT where company affairs are conducted in a manner prejudicial to public interest, oppressive to members, or prejudicial to company interests. Section 241(2) empowers Central Government (MCA) to apply where affairs are prejudicial to public interest. Section 242 confers wide remedial powers on NCLT to regulate affairs, remove directors, and recover undue gains. Mandate: Provides a statutory governance pathway before NCLT against boards conducting corporate affairs in a manner prejudicial to public interest through systemic environmental fraud.	<u>Tata Consultancy Services Ltd. v. Cyrus Investments</u> (2021) 9 SCC 449 SUPREME COURT OF INDIA Scope of Section 241/242: Read alongside Section 166(2); confirmed that conduct must be oppressive or prejudicial to public interest. Affirmed that corporate governance includes broad stakeholder duties. <u>Union of India v. IL&FS Ltd. & Ors.</u> NCLT / NCLAT Orders (2018) NCLT / NATIONAL COMPANY LAW APPELLATE TRIBUNAL Government Intervention in Public Interest: Central Government invoked Section 241(2) on grounds of prejudice to public interest to replace the board of directors, illustrating structural remediation for systemic corporate governance collapse. <u>Fidaali Moiz Mithiborwala v. Majolica Properties</u> NCLT Mumbai, C.P. No. 90/241-242/NCLT/MAH/2016 NCLT / NCLAT Remedies against Board Misconduct: Clarified application of Section 241/242 against management decisions that breach statutory standards or damage company assets.

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Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 244 Standing Eligibility Threshold for Oppression Actions & NCLT Waiver Powers	"The following members shall have the right to apply under section 241, namely:— in the case of a company having a share capital, not less than one hundred members... or not less than one-tenth of total members... or member(s) holding not less than one-tenth of issued share capital... Provided that Tribunal may... waive all or any requirements specified..." Mandate: Sets eligibility thresholds to initiate governance actions; thesis identifies this threshold as a major structural barrier preventing external environmental victims from enforcing Section 166(2).	<u>Cyrus Investments Pvt. Ltd. v. Tata Sons Ltd.</u> 2017 SCC OnLine NCLAT 261 NCLAT Discretionary Waiver Standard: NCLAT established principles governing Tribunal's power under Section 244 proviso to waive numerical shareholding thresholds where serious governance issues and public interest are involved. <u>Thesis Critical Standing Recommendation</u> Thesis Chapter 6.3 (Recommendations) ACADEMIC / LEGISLATIVE RECOMMENDATION Enforcement Standing Lacuna: Proposes inserting Section 166(8) to allow affected citizens and creditors to approach NCLT for environmental misrepresentation without the restrictive shareholding thresholds of Section 244.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 134(3). (m) & Rule 8 Mandatory Energy Conservation & Green Tech Disclosures in Board's Report	Read with Rule 8(3)(A) of Companies (Accounts) Rules, 2014: requires Board's Report to disclose energy conservation steps taken, alternate energy sources utilized, and capital investments on energy conservation equipment. Mandate: Imposes statutory reporting obligations on environmental performance in annual directors' reports submitted to MCA.	<u>Registrar of Companies / NCLT Compliance Jurisprudence</u> Companies Act Adjudication Orders NCLT / ROC ADJUDICATING OFFICERS Statutory Misstatement Sanctions: False or omitted energy conservation disclosures in Board Reports trigger statutory penalties under Section 134(8) and Section 448.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 135 Mandatory Corporate Social Responsibility (CSR - Schedule VII Environment)	Requires qualifying companies to spend 2% of average net profits on Schedule VII activities, including ensuring environmental sustainability, ecological balance, agroforestry, conservation of natural resources, and agro-ecology. Mandate: Statutory institutionalization of environmental spending; thesis notes CSR spend cannot be used to whitewash core operational environmental harm.	<u>MCA CSR Enforcement Jurisprudence</u> MCA Circulars / RoC Orders MINISTRY OF CORPORATE AFFAIRS Non-Substitutability of CSR: CSR contributions to environmental funds do not exempt corporations from regulatory compliance or liability for deceptive operational claims.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Section 245 Shareholder Class Action Applications against Directors & Management	"Such number of member(s) or depositor(s)... may file an application before Tribunal on behalf of members/depositors seeking orders to restrain company from doing acts ultra vires, committing breach of articles, or claiming damages/compensation from directors/auditors for misleading statements or fraudulent acts." Mandate: Provides a collective investor litigation pathway to hold directors personally liable for value destruction caused by greenwashing scandals.	<u>Jindal Poly Films Ltd. Class Action Litigation</u> NCLT Mumbai, C.P. (IB)–4219/MB/2023 (2024) NATIONAL COMPANY LAW TRIBUNAL (NCLT) Activation of Class Action Remedy: First substantive activation of Section 245 in India; enables shareholders to claim damages from directors where fraudulent disclosures or ESG deceptions destroy company market value.

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Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Sections 206, 210 & 212 MCA Inspection, Inquiry & Serious Fraud Investigation Office (SFIO) Powers	Section 206 empowers RoC to call for information and conduct inquiry. Section 210 empowers Central Government to order investigation in public interest. Section 212 empowers assignment of investigation to the Serious Fraud Investigation Office (SFIO). Mandate: Enables government-initiated statutory investigations into complex corporate deception, falsified non-financial audits, and systemic greenwashing.	<u>SFIO Investigation Jurisprudence</u> Supreme Court / NCLAT Rulings SUPREME COURT OF INDIA / HIGH COURTS Investigation into Systemic Fraud: SFIO has comprehensive statutory powers to investigate multi-layered corporate deception where non-financial reports mask severe statutory non-compliance.
Companies Act, 2013 <i>Act No. 18 of 2013</i>	2013	Sections 447, 448 & 449 Criminal Punishment for Corporate Fraud & False Statements	Section 447 imposes imprisonment from 6 months to 10 years and fine up to 3 times fraud amount for corporate fraud. Section 448/449 penalizes false statements and false evidence in returns, prospectuses, reports, or financial statements. Mandate: Applies severe criminal fraud liability to intentional fabrication of ESG disclosures or deceptive green capital-raising prospectuses.	<u>SFIO Corporate Deception Jurisprudence</u> NCLAT / Supreme Court Decisions SPECIAL COURTS / NCLAT ESG Falsification as Fraud: Misrepresenting non-financial metrics to mislead investors or regulators satisfies the statutory threshold of 'fraud' under Section 447.

PILLAR 4: CAPITAL MARKETS & SECURITIES REGULATION REGIME (SEBI)

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
SEBI Act, 1992 <i>Act No. 15 of 1992</i>	1992	Sections 11 & 11B SEBI Powers to Regulate Capital Markets, Direct Inquiries & Issue Cease/Desist	Empowers SEBI to protect the interests of investors in securities, regulate securities markets, call for information, conduct investigations, and issue binding directions to intermediaries and listed companies. Mandate: Provides SEBI with overarching statutory authority to police corporate sustainability disclosures and prevent market manipulation.	<u>Piramal Enterprises Ltd. v. SEBI</u> SAT Appeal No. 466/2016 (May 15, 2019) SECURITIES APPELLATE TRIBUNAL (SAT) Institutional Disclosure Accountability: Held that primary responsibility for compliance failures lies with specific designated officers, clarifying boundaries of individual vs corporate liability.
SEBI Act, 1992 <i>Act No. 15 of 1992</i>	1992	Sections 12A & 15HA Prohibition of Deceptive Devices & Monetary Sanctions (Up to ₹25 Cr / 3x Profits)	Section 12A prohibits manipulative and deceptive devices in securities transactions. Section 15HA prescribes penalties for fraudulent and unfair trade practices: minimum ₹5 Lakh up to ₹25 Crore or 3 times the profits made, whichever is higher. Mandate: Provides heavy financial penalties against listed companies and promoters for deceptive greenwashing that distorts stock valuations.	<u>SEBI v. Kanaiyalal Baldevbhai Patel</u> (2017) 15 SCC 1 SUPREME COURT OF INDIA Expansive Fraud Standard: Held that 'fraud' under Section 12A and PFUTP includes any contrivance, misrepresentation, or concealment that creates informational distortion in the market. <u>N. Narayanan v. Adjudicating Officer, SEBI</u> (2013) 12 SCC 152 SUPREME COURT OF INDIA Market Integrity Protection: Publishing inaccurate corporate information constitutes fraud against market integrity; directors cannot escape liability for deceptive disclosures.

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
SEBI (LODR) Regulations, 2015 <i>SEBI Listing Regulations</i>	2015	Regulation 34(2)(f) & BRSR Core Mandatory Business Responsibility & Sustainability Reporting (BRSR Core)	Mandates top 1,000 listed entities to include annual BRSR based on NGRBC. SEBI July 2023 Circular introduced 'BRSR Core' with mandatory reasonable assurance across 9 ESG attributes and Value Chain (Scope 3) reporting. Mandate: Transforms voluntary corporate ESG disclosures into a legally enforceable, verifiable statutory reporting regime for top listed firms.	<u>In re Bajaj Hindusthan Sugar Ltd.</u> SEBI Order No. EAD-5/A0/SV/2023 SEBI ADJUDICATING OFFICER Materiality of Environmental Disclosures: Held that non-disclosure of environmental closure orders, pollution notices, and penalties in BRSR violates LODR disclosure mandates, subjecting entity to penal sanctions.
SEBI (LODR) Regulations, 2015 <i>SEBI Listing Regulations</i>	2015	Regulation 30 Mandatory Continuous Disclosure of Material Events & Environmental Liabilities	Listed entities must promptly disclose all material events, including environmental regulatory actions, plant shutdowns, pollution penalties, and material litigations within statutory timelines (12–24 hours). Mandate: Prevents selective concealment of adverse environmental events, ensuring investors receive real-time material environmental risk data.	<u>SEBI Materiality Adjudication Orders</u> SEBI Circulars & Rulings (2023–2024) SEBI Continuous Environmental Truthfulness: Failure to promptly disclose pollution notices or SPCB closure orders constitutes an actionable disclosure violation.
SEBI (PFUTP) Regulations, 2003 <i>Fraudulent Trade Practices Rules</i>	2003	Regulations 3 & 4 Prohibition of Fraudulent, Manipulative & Deceptive Market Disclosures	Prohibits misleading statements, misrepresentations, and fraudulent omissions in prospectuses, annual reports, or ESG disclosures that induce investors to trade or affect securities prices. Mandate: Statutory bridge enabling SEBI to treat fabricated corporate sustainability claims as actionable market fraud.	<u>SEBI v. Kishore R. Ajmera</u> (2016) 6 SCC 368 SUPREME COURT OF INDIA Preponderance of Probabilities in Market Deception: Direct evidence of fraud is unnecessary; circumstantial evidence establishing pattern of deceptive representations suffices under PFUTP.
SEBI Green Debt Securities Framework <i>NCS Operational Circular, Chapter IX</i>	2023	Chapter IX (Green Bonds) Green Debt Securities Issuance, Ring-Fencing Proceeds & Anti-Greenwashing Rule	Defines eligible green projects, mandates escrow account tracking of proceeds, requires continuous environmental impact reporting, third-party verification, and explicitly prohibits greenwashing (diverting funds or misleading green labeling). Mandate: Prevents 'greenwashing' in capital market debt instruments; ensures green bond proceeds fund verified sustainable projects.	<u>SEBI Green Bond Regulatory Guidance</u> SEBI Operational Circular (Feb 2023) SEBI Additionality & Escrow Integrity: Issuers must maintain complete audit trails and independent certification to prevent green-tinted debt from funding polluting assets.
SEBI ESG Rating Providers & Funds <i>ERP Regulations & Master Circular</i>	2023	Reg. 28E/28F & MF Circular Regulation of ESG Rating Providers (ERPs) & ESG Mutual Funds Framework	Regulates ERPs under Credit Rating Agencies framework; creates Core ESG ratings based on assured data; mandates ESG Mutual Funds to deploy 80% AUM in strategy-aligned assets and invest only in BRSR-compliant entities. Mandate: Eliminates conflicts of interest among ESG rating agencies and prevents portfolio-level greenwashing by mutual funds.	<u>Thesis Analysis on Regulatory Backsliding</u>, Thesis Chapter 5.4.4 ACADEMIC / POLICY CRITIQUE Critique of ERP Correction Lags: Analyzes SEBI's 2024-2025 ease-of-doing-business relaxations (extending ERP correction window from 10 to 45 days) as potential dilution of deterrence.

PILLAR 5: BROADER ENVIRONMENTAL STATUTES & SECTORAL STANDARDS

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Environment (Protection) Act, 1986 <i>Act No. 29 of 1986</i>	1986	Sections 3, 5, 7 & 15 Standard Setting, Closure Directions & Penalties for Pollutant Discharge	Empowers Central Government to lay down nationwide environmental standards (Sec. 3), issue binding closure/prohibition directions (Sec. 5), prohibits excess pollutant discharge (Sec. 7), and prescribes penal sanctions (Sec. 15, amended by Jan Vishwas Act, 2023). Mandate: Supplies the non-negotiable objective legal baseline against which all corporate 'green' assertions are tested.	<u>Vellore Citizens' Forum v. UOI</u> (1996) 5 SCC 647 SUPREME COURT OF INDIA Absolute Regulatory Baseline: Companies cannot claim to be environmentally sound if they operate in violation of statutory discharge standards prescribed under EPA 1986.
Ecomark Rules, 2024 <i>Notified under EPA, 1986 (MoEFCC)</i>	2024	Rules 3–8 Statutory Eco-Labeling Scheme based on Life Cycle Assessment (LCA)	Overhauls the 1991 scheme; awards Ecomark certification based on Life Cycle Assessment, energy efficiency, minimal resource depletion, circular economy design, and verifiable non-toxicity. Mandate: Provides a government-administered, third-party verified eco-label to replace unverified corporate self-declarations.	<u>MoEFCC / CPCB Ecomark Implementation</u> Gazette Notification G.S.R. 657(E) (2024) MOEFCC / CENTRAL POLLUTION CONTROL BOARD Standardized Benchmark: Provides definitive benchmark under CCPA Guidelines; products bearing statutory Ecomark possess rebuttable presumption of genuine green performance.
Plastic Waste Management Rules, 2016 <i>Amended 2022 & 2024 (under EPA)</i>	2016	Rules 9, 13 & Schedule II Extended Producer Responsibility (EPR) & Ban on Deceptive Biodegradable Claims	Mandates strict EPR targets for packaging; prohibits marketing plastics as 'biodegradable' or 'compostable' without mandatory CPCB certification under Indian Standards (IS/ISO 17088). Mandate: Eliminates widespread greenwashing in plastic packaging and biodegradable claims.	<u>NGT Extended Producer Responsibility Orders</u> Original Application No. 360/2018 (NGT) NATIONAL GREEN TRIBUNAL Strict EPR Verification: Prohibited sale of plastic products bearing self-declared 'biodegradable' labels without registered CPCB certificate.
National Green Tribunal Act, 2010 <i>Act No. 19 of 2010</i>	2010	Sections 14, 15 & 20 Environmental Jurisdiction, Restitution & Mandatory Sustainable Dev Principles	Section 14 confers jurisdiction over substantial environmental questions. Section 15 empowers NGT to grant compensation and order environmental restitution. Section 20 mandates application of Sustainable Development, Precautionary Principle, and Polluter Pays Principle. Mandate: Specialized tribunal for environmental restitution and holding corporate polluters liable for actual environmental damage.	<u>Volkswagen India Pvt. Ltd. v. UOI</u> 2019 SCC OnLine NGT 235 / Supreme Court NATIONAL GREEN TRIBUNAL / SC ₹500 Crore Penalty for Emissions Deception: NGT imposed ₹500 crore environmental compensation for installing 'defeat devices' in diesel cars, establishing that fraudulent green claims causing air degradation attract massive environmental compensation. <u>In re LG Polymers India Pvt. Ltd.</u> 2020 SCC OnLine NGT 129 NATIONAL GREEN TRIBUNAL Strict Restitution Mandate: Enforced absolute liability on industrial polluters to deposit restitution funds immediately under Section 15 & 20. <u>Forward Foundation v. State of Karnataka</u> 2015 SCC OnLine NGT 5 NATIONAL GREEN TRIBUNAL Section 20 Statutory Command: Precautionary and Polluter Pays principles are binding statutory mandates, shifting the burden of proof to project proponents.

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Food Safety & Standards Act, 2006 <i>Act No. 34 of 2006</i>	2006	Sections 24 & 53 Restrictions on Food Advertisements & Penalties for Misleading Claims (₹10L)	Section 24 prohibits unfair trade practices and misleading representations concerning food quality, nutritional value, or organic status. Section 53 imposes penalties up to ₹10 Lakh for false/misleading advertisements. Mandate: Rigorous sectoral regulation against environmental and organic greenwashing in food and beverage marketing.	<u>FSSAI Misleading Claims Enforcement Orders</u> FSSAI Adjudication Rulings (2021–2024) FSSAI ADJUDICATING OFFICERS Statutory Food Integrity: Brand claims implying organic or eco-friendly origin without NPOP certification constitute actionable misleading advertising under Section 24/53.
FSSAI Advertising & Claims Regs, 2018 <i>Amended 2022/2023 (under FSSA)</i>	2018	Regulations 3–5 & Schedule I/II Statutory Dictionary for 'Natural', 'Fresh', 'Pure', 'Organic' & 'Green'	Requires all claims to be truthful, clear, and scientifically substantiated; establishes strict statutory criteria for using words like 'Natural', 'Fresh', 'Pure', 'Organic', 'Traditional', and 'Green'. Mandate: Eliminates subjective, deceptive marketing in food products by establishing rigid statutory definitions for eco-descriptors.	<u>FSSAI Sectoral Guidance</u> FSSAI Guidelines (2022) FOOD SAFETY AND STANDARDS AUTHORITY OF INDIA Prohibition of Chemical Processing Masking: Words such as 'Natural' cannot be applied to foods containing synthetic additives, flavors, or chemical extracts.
FSSAI (Organic Foods) Regulations, 2017 <i>Notified under FSSA, 2006</i>	2017	Regulations 3–5 Mandatory 'Jaivik Bharat' Certification under NPOP / PGS-India	Mandates that no food product can be labeled or sold as 'Organic' unless certified under National Programme for Organic Production (NPOP) or Participatory Guarantee System (PGS-India) and bearing the 'Jaivik Bharat' logo. Mandate: Creates an iron-clad certification barrier against self-declared organic greenwashing in the agricultural and food supply chains.	<u>Organic Food Compliance Directives</u> FSSAI Directives (2023) FSSAI Mandatory Eco-Logo Standard: Direct sales of non-certified organic produce in commercial packaging is prohibited; uncertified organic claims constitute illegal food adulteration/misbranding.
Trade Marks Act, 1999 <i>Act No. 47 of 1999</i>	1999	Sections 9(1)(b), 9(2)(a), 27 & 69–78 Refusal of Deceptive Green Trademarks, Passing Off & Certification Marks	Sec. 9(1)(b)/9(2)(a) prohibits registering marks that describe quality or deceive the public regarding eco-credentials. Sec. 27 preserves common law Passing Off actions. Sec. 69–78 provide statutory framework for Certification Trade Marks (CTMs). Mandate: Prevents deceptive green branding in intellectual property and protects certified eco-labels from commercial misappropriation.	<u>Reckitt & Colman v. Borden / Indian Trademark Jurisprudence</u> High Court / IPAB Rulings HIGH COURTS OF DELHI & BOMBAY Passing Off Protection for Eco-Certifications: Imitating certified environmental logos or falsely claiming standard certification constitutes actionable passing off and commercial misrepresentation.
Bureau of Indian Standards Act, 2016 <i>Act No. 11 of 2016</i>	2016	Sections 14, 15 & 29 Prohibition of Deceptive Use of Standard Marks & Ecomark Scheme	Prohibits improper or unauthorized use of the Standard Mark (ISI mark / Ecomark) or deceptive imitation. Section 29 imposes imprisonment up to 2 years and fines up to ₹5 Lakh or 10 times value of goods. Mandate: Statutory protection for verified standard marks and penal enforcement against counterfeit eco-labels.	<u>BIS Ecomark Certification Jurisprudence</u> BIS Product Certification Framework BUREAU OF INDIAN STANDARDS Dual-Criterion Ecomark: Requires concurrent compliance with Indian quality standards and environmental life-cycle criteria (Matka logo).
Energy Conservation Act, 2001 <i>Amended 2022 (Act No. 52 of 2001)</i>	2001	Sections 14(a)–(d) & 26 BEE Star Labeling Program, Energy Benchmarks & Carbon Credit Scheme (CCTS)	Section 14 empowers BEE/Central Government to mandate display of Energy Star Labels and regulate Carbon Credit Trading. Section 26 penalizes non-compliance or deceptive energy efficiency claims (fine up to ₹10 Lakh + ₹10,000/day). Mandate: Regulates energy performance claims on appliances and establishes statutory carbon trading verification to prevent phantom credits.	<u>BEE Star Rating Enforcement Rulings</u> BEE Adjudication Orders (2022–2024) BUREAU OF ENERGY EFFICIENCY Star Rating Authenticity: Misrepresenting energy consumption benchmarks on appliances attracts immediate statutory penalties and product de-listing.

LAW NAME	YEAR	IMPORTANT SECTION / PROVISION	IMPORTANT SECTION TEXT & MANDATE	RELEVANT JUDICIAL JUDGEMENTS TO DECIPHER MEANING
Water Act 1974 & Air Act 1981 <i>Pollution Control Baseline Acts</i>	1974 / 1981	Sections 21/25 (Water) & Sec 21 (Air). Consent to Establish (CTE) / Operate (CTO) & Mandatory Compliance Filings	Mandates prior statutory consent from State Pollution Control Boards (SPCBs) to operate industrial units, compliance with effluent/emission parameters, and periodic filing of Environmental Statements. Mandate: Serves as the foundational regulatory consent regime; false disclosures to pollution boards invalidate any external corporate green claims.	<i>Indian Council for Enviro-Legal Action v. UOI</i> (1996) 3 SCC 212 SUPREME COURT OF INDIA Mandatory Consent Compliance: Operating without valid SPCB consent or submitting false compliance reports triggers immediate closure and strict restitution liability.

Explanatory Note & Citation Integrity: This comprehensive compendium extracts and synthesizes every Indian legislative statute, delegated enactment, regulatory framework, and judicial precedent covered in the doctoral thesis. The structural matrix is organized across the five doctrinal pillars of Indian environmental and corporate law: (1) Constitutional Bedrock & Judicial Foundations, (2) Consumer Protection & Anti-Greenwashing Guidelines Regime, (3) Corporate Governance & Board Accountability Regime, (4) Capital Markets & Securities Regulation Regime, and (5) Broader Environmental Statutes & Sectoral Standards. All legal principles and judicial interpretations reflect binding rulings from the Supreme Court of India, National Green Tribunal (NGT), Securities Appellate Tribunal (SAT), and National Company Law Tribunal (NCLT).